

**-Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

August 3, 2026

#	Case Name	Tentative
1.	Protack vs. Montejo 24-01434462	1. Motion to Deem Vexatious Litigant 2. Motion to Deem Facts Admitted <u>Vexatious Litigant Motion.</u> Defendant Patricia T. Montejo's motion to deem plaintiff Michael D. Protack a vexatious litigant; for dismissal, or alternatively, an order requiring plaintiff to furnish security; and for a pre-filing order, is DENIED. (Code Civ. Proc., § 391 et seq.) Dismissal is DENIED, as plaintiff is not currently the subject of a prefiling order (Code Civ. Proc., § 391.3, subd. (b)), nor failed to comply with a prior order to furnish security (Code Civ. Proc., § 391.4).

The request for an order requiring security is DENIED. Even if plaintiff qualifies as a vexatious litigant under Code Civ. Proc., § 391, subd. (b)(5), moving party has not met her burden of showing that there is not a reasonable probability that plaintiff will prevail in the instant litigation. (Code Civ. Proc., § 391.1, subd. (a); *Golin v. Allenby* (2010) 190 Cal.App.4th 616, 640 [moving defendant has burden to show “both that the plaintiff is a vexatious litigant and that there is no reasonable probability that the plaintiff will prevail in the action against the moving defendant”].) Rather, in this respect, moving party relies only on this court’s prior rulings on defendants’ anti-SLAPP motion to strike, and motion for judgment on the pleadings, which is insufficient absent any showing that those prior rulings have any preclusive effect. (*Golin v. Allenby, supra* at 640 [“moving parties offered no evidence relating to the merits of the case, relying instead, with little analysis, on the asserted preclusive effect of the court’s prior determinations in the conservatorship proceeding and the district court’s determinations in its order dismissing the Golins’ federal action ... neither order was demonstrated to compel the conclusion that there is no reasonable probability that the Golins, as a matter of law, are unlikely to prevail on any of their claims”].)

Further, plaintiff filed the operative First Amended Complaint on 2-27-26, which includes an action for malicious prosecution, but this claim was not addressed in the moving papers at all, despite the instant motion being filed afterwards [on 3-9-26]. In fact, Defendant has not filed an answer to the FAC.

Finally, the court exercises its discretion to deny the request for a pre-filing order. (Code Civ. Proc., § 391.7, subd. (a).)

Plaintiff’s request for judicial notice is DENIED. (Evid. Code, § 453 [insufficient notice re: “[t]he Court’s records in this action”]; Cal. Rules of Court, Rule 3.1113, subd. (I) [“request for judicial notice must be made in a separate document”].) The request is also unnecessary, as the court records appear adequately authenticated by plaintiff’s declaration, and there is no objection by defendant.

This action was stayed upon filing the instant motion. (Code Civ. Proc., § 391.6.) As the motion is denied, **moving defendant is ordered to file a responsive pleading to the First Amended Complaint within 15 days.**

Motion to Deem Facts Admitted

		This Motion has been withdrawn on July 30, 2026. ROA 253 The trial in this matter is currently set for August 28, 2026. Moving Party Defendant to give notice of all of the above.
2.	Nguyen vs. Ammari 24-01405008	Motion to Compel Physical Examination Defendant Estate of Sam Ammari's Motion to Compel Plaintiff Kim Lieu Nguyen to submit to a second independent medical examination is DENIED. (Code Civ. Proc., § 2032.320(a); see also <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 840 [good cause requires finding of relevancy and specific facts justifying the discovery sought].) Defendant has failed to show good cause to permit a second physical examination of Plaintiff's shoulder. There is no dispute that Plaintiff's shoulder injuries are at issue in this litigation. However, Plaintiff has already submitted to a physical examination of her shoulder by Dr. Michael P. Weinstein. Dr. Weinstein conducted provocative testing on Plaintiff's shoulder, including Neer's impingement test, Hawkins impingement test, Speed's test, and Crossed adduction test. Dr. Weinstein notes that the prior imaging of Plaintiff's shoulder is of poor quality and that a new MRI of Plaintiff's shoulder would be helpful in assessing her complaints. Defendant now seeks to subject Plaintiff to a second physical examination by Dr. Theodore Gregorious. Dr. Gregorious is also an orthopedic surgeon, but he specializes in shoulder injuries. The scope of Dr. Gregorious's proposed examination, however, is entirely duplicative of testing Dr. Weinstein had already conducted. The Court is unpersuaded there is good cause to subject Plaintiff to a second round of provocative testing of her shoulder. If Defendant believed it was necessary for a shoulder specialist to assess Plaintiff's shoulder injury, Defendant should have had a doctor who does specializes in shoulder injuries conduct a physical examination, with provocative testing, of Plaintiff's shoulder the first time. Plaintiff's request for sanctions is denied. Defendant had a reasonable basis to believe there was good cause to seek the second examination of Plaintiff's shoulder. Plaintiff shall provide notice of this ruling.